DIGITALKARTAI.SHOP | 2026-27 EDITION

THE INDIAN LAND & PLOT BUYING PLAYBOOK

How to check a title, read the records and buy land in India without losing your money to an impostor

- The 90-minute desk check: nine free government sources, in order
- Record of Rights, encumbrance certificate, CERSAI and the title chain
- RERA for plotted layouts, the 500 sq m / 8-plot trap, and the affidavit to demand
- What DILRMP 3.0, Bhu-Aadhaar and auto-mutation changed in 2026
- Stamp duty, registration fee, TDS under the Income-tax Act 2025, and the cash trap
- Eight printable worksheets: checklist, letters, cost sheet, site sheet

Facts traced to PIB, the Department of Land Resources, India Code, RBI, the Income-tax Department and reported 2026 court and police records. November 2026.

Read this first

This playbook is for one specific moment: you are about to put money into a piece of land in India, and you want to be sure the person selling it actually owns it, that the land can legally be sold to you, and that nobody else has a claim on it.

It is written for plots, not flats. A flat has a builder, a project, an occupancy certificate and a bank that has already done the homework. A plot has none of that. You are buying a shape on a map, described by a survey number, in a village or a layout, from a person you met six weeks ago. Almost everything that protects you has to be done by you, before you pay.

So this is not a book of theory. It is a sequence of checks, each with the exact place to look, the thing you are looking for, and the sentence to say when something is wrong. Do them in order. The first nine cost nothing but an evening.

What is inside, part by part

- **Part 1** explains why land behaves differently from every other purchase, and walks through five fraud patterns that were reported in Indian newspapers between February and November 2026. Read these once. They will change how you look at the next broker you meet.
- **Part 2** is the desk check. Nine sources, all free, all online: the state land record portal, the encumbrance certificate, CERSAI, the RERA portal, e-Courts, the layout approval file, the zoning map and the seller's own identity documents.
- **Part 3** is the money: what the government will charge you, the 1% TDS you must deduct under the Income-tax Act 2025, why cash destroys your own case, and how to structure payments so that every rupee is tied to a document.
- **Part 4** is the paperwork: eighteen clauses in the agreement to sell, twenty-two things to check at the registration counter, and what to do in the ninety days after.
- **Part 5** is the bad day: the stop list, and the first seven days if you have already paid.
- **Part 6** covers NRIs, bank auctions and joint ownership.
- **Part 7** is eight worksheets you can print and carry.

> **The single idea that saves the most money**
> You are not buying land. You are buying a documented chain of rights, plus a legal permission to use the land the way you plan to use it. The soil is the least important part of the deal. If the chain and the permission are not there, the land is not for sale, whatever the seller says.

Three honest limits

First, this is general information, not legal advice, and land is a State subject. The Registration Act, the Transfer of Property Act and RERA are central laws, but the record formats, conversion rules, stamp duty and registration fee change from state to state and are revised in state budgets. Every figure here was checked against an official source in November 2026, and the source is named. Where a number is state-specific and could not be confirmed from a government page, we say so instead of guessing.

Second, no checklist makes a title absolutely safe. India has no guaranteed title; you prove ownership by producing a chain of registered documents, and a court decides disputes. What a checklist does is remove the frauds that are visible before you pay, which is most of them.

Third, a good local lawyer is not optional. This book is built to make that lawyer cheaper: you arrive with the documents collected, the questions framed and the file indexed, which is a two-hour consultation instead of a six-week fishing trip.

How to use this book in one week

A land purchase has a natural rhythm, and the checks in this book are arranged to match it. If you are already talking to a seller, read the schedule below and start at the row that describes where you are today. If you are only beginning to look, start at row one and do the work before you visit a single plot.

When	What you do	Where
Tonight	Read Part 1. Then run the nine-source desk check on any plot you are serious about	Chapters 1-4
Day 2	Pull the Record of Rights and the map. Match survey number, sub-division, area and boundaries three ways	Chapter 5
Day 3	Order the encumbrance certificate for thirty years. Run the CERSAI asset and borrower searches	Chapters 6-7
Day 4	Build the title chain worksheet. Test every link with the four questions	Chapter 8, W3
Day 5	Check conversion, zoning, the layout sanction and, if applicable, RERA registration	Chapters 9-11
Day 6	Meet the seller in person with the conversation script. Verify identity, co-owners and heirs	Chapter 12, W8
Day 7	Cost the deal on the calculator, draft the agreement, brief your lawyer with the file	Chapters 13-16, W5
Completion	Work through the counter check at registration, then the ninety-day list	Chapters 17-18, W1

Two habits make the whole system work. First, keep one folder and one payment register from the first conversation; almost every dispute is lost on paperwork, not on law. Second, write the date on everything you download or photograph. A record without a date cannot prove anything, because land records change and frauds are committed in the gap between what you checked and what you paid.

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PART 1

Understand the game

1. Land is not a flat: six differences that cost money

Six things are true of land in India that are not true of a flat, a car or a shop. Each one has a check attached to it later in the book.

1. **The record and the owner are two different things.** A Record of Rights entry tells the government who to collect land revenue from and who to pay compensation to. It is not a title certificate. Mutation into your name after purchase does not create ownership; it only updates the revenue record. Courts have said this repeatedly, and the Supreme Court said it plainly in *Suraj Lamp & Industries v. State of Haryana* (2011): a mutation entry cannot be the basis of a transfer of title.
2. **Possession is a separate fact from ownership.** Someone can own the land and someone else can be sitting on it, farming it, or running a shop on it. A tenant, a sharecropper, an encroacher or a family member in occupation can outlast a sale. You must see the land, walk the boundaries and find out who is physically there.
3. **Land use is regulated, and the regulation is local.** A plot can be perfectly owned and completely unusable: agricultural land you are not permitted to buy, land inside an acquired zone, land reserved for a road in the master plan, land with no approved access, land in a layout that was never sanctioned. Ownership is half the question; permission is the other half.
4. **The price is not the cost.** Stamp duty, registration fee, cess, transfer duty, brokerage, lawyer's fee, survey, and conversion charges if the land is agricultural can add a serious percentage on top of the cheque you write to the seller. In the states we checked for this edition, all-in government charges ranged from roughly 6% to roughly 11% of the higher of the sale price and the government's guidance value. Budget for it before you negotiate, not after.
5. **Most of the risk sits in documents you have never seen.** The deed in front of you is one page of a story that began thirty or sixty years ago. The risk lives in the links before it: a partition that was never registered, an heir who was never asked, a mortgage that was never discharged, a power of attorney that was revoked.
6. **The fraud is usually an identity fraud, not a document fraud.** In the 2026 cases, the papers were often genuine-looking because they were built from real records. What was fake was the person: an impostor posing as the owner at the sub-registrar's office, with a forged Aadhaar and PAN. This is why the seller check in chapter 12 matters more than any certificate.

> **The mental shift**
> Stop asking 'is this a good price?' Start asking 'whose name is on this land, in which record, and what would I have to produce in court to prove it is now mine?' The price question comes after that one is answered.

2. Five fraud patterns from 2026, and how each one was done

These are not invented illustrations. They are patterns from police and court reports published in Indian newspapers between February and November 2026. Names and places are as reported; the lessons are general.

Pattern one: the impostor at the counter

In July 2026, a woman in Barabanki district, Uttar Pradesh, bought 1.2890 hectares of agricultural land for Rs 45 lakh through a registered sale deed. The person who signed at the tehsil office was not the owner. The accused had prepared forged documents and produced an impersonator, and the fraud surfaced only when the buyer went to take possession and found the real owner alive and unaware. Six people were arrested.

The lesson: registration does not verify identity. The sub-registrar's office records the transaction; it does not run a forensic check on the person in front of it. You are the identity check. Chapter 12 shows how.

Pattern two: the woman who was not the owner

In a Pune case reported in July 2026, a grocery trader paid Rs 46 lakh for a four-guntha plot. At the registration in 2020, a woman appeared claiming to be the owner. The property had in fact been bought in 1995 and sold in 2001; the accused had arranged an unknown woman to impersonate the 1995 owner. The buyer discovered the truth in 2024 when he visited the plot and found two other people claiming to own it.

The lesson: a photo on a record and a name on a deed prove very little. The chain of ownership from 1995 to 2001 to today had a real, verifiable shape. Nobody checked it.

Pattern three: the same plot, sold many times

In October 2026, the Hyderabad Central Crime Station reported that a property in Madannapet had been sold or mortgaged to multiple people through overlapping agreements, leaving at least 54 victims cheated of around Rs 4.5 crore over five years.

The lesson: one agreement to sell does not stop the seller from signing another. What stops him is a registered deed, or at minimum a public notice and a properly drafted agreement with a prohibitory injunction clause. Chapter 15 explains the sequence that closes this door.

Pattern four: the mutation that was never filed

In Ahmedabad in November 2026, a land trader alleged he had been cheated of Rs 4.70 crore by ten people who posed as landowners, created forged Aadhaar and PAN cards in the real owners' names, opened bank accounts in those names, and executed notarised agreements and registered sale deeds in April and May 2026. The fraud came to light only when the buyer applied to have the land mutated in the revenue records and notices went out to the recorded owners, who then said they had never sold.

The lesson, and it is a useful one: the mutation process is an accidental fraud detector, because it sends notice to the person on the record. That is also why fraudsters pressure buyers to 'do the mutation later'. Do it immediately, and read every notice that comes to your own address.

Pattern five: land that had already been acquired

In Zirakpur, Punjab, in October 2026, police booked two property dealers for forging registry records and presenting an impostor to sell 12 biswas of land that had already been acquired by the Greater Mohali Area Development Authority. The genuine buyer found out when she applied for a plot under the authority's land-pooling scheme and learned the land had already been sold to someone else in February 2025.

The lesson: a clean private title can still be a dead asset if a public authority has acquired the land or reserved it. That is a separate check, done on a separate map. Chapter 9 and chapter 10.

> **What all five have in common**
>
> In every one of them, the buyer relied on a document and a broker, and never independently confirmed three things: who the recorded owner is today, whether the recorded owner is the person in front of them, and whether anyone else has an interest in the same parcel. Those three confirmations are free. They take an evening.

3. What changed in 2026: DILRMP 3.0, Bhu-Aadhaar, auto-mutation

The land records system changed materially in 2026, and some of the change works in your favour. Here is what actually happened, and what it does and does not do for a buyer.

DILRMP 3.0, approved for 2026-2031

On 10 September 2026 the Union Minister for Rural Development launched the operational guidelines for the third phase of the Digital India Land Records Modernisation Programme, a central sector scheme with an outlay of Rs 565.50 crore for 2026-2031, funded 100% by the Centre and implemented across all States and Union Territories on a phased, performance-linked basis.

The earlier phases had already done the bulk of the basic digitisation: 99.90% of Records of Rights and 97% of cadastral maps digitised, and 99% of sub-registrar offices computerised, according to the Ministry. Phase 3 is about joining those islands up.

Six components matter to you:

- **Land Stack.** A GIS-enabled framework that pulls georeferenced cadastral maps, Records of Rights, property registrations and relevant court matters into one interface, state by state, through APIs, with the state stacks forming a national stack. In plain terms: fewer portals, more cross-referencing.
- **Universal Bhu-Aadhaar (ULPIN).** A 14-digit identifier assigned to every land parcel in the country. It is generated from the geo-referenced coordinates of the parcel. It identifies the plot, not the owner.
- **Registration Seva Kendras.** Seventy-five high-footfall sub-registrar offices are being modernised into citizen service centres with digital queue management, modelled on Passport Seva Kendras.
- **Scanning of legacy records.** Historical registration records are being scanned and archived, which is what makes a thirty-year search possible without a physical visit to a record room.
- **Registration Repository.** A secure digital framework of registered deeds and encumbrance information, explicitly built for ownership verification and property due diligence.
- **Paperless revenue courts, and NAKSHA.** The Revenue Court Case Management System is being linked to land records to cut mutation pendency; the NAKSHA urban mapping programme is being accelerated to issue urban property cards.

How far it has actually got

A parliamentary Standing Committee report presented on 11 August 2026 gives the honest picture as of January 2026: 99.8% of Records of Rights computerised, 97.4% of cadastral maps digitised, 95.7% of sub-registrar offices computerised, and 88.6% of registration offices integrated with revenue offices. Modern record rooms stood at 72.5%. Auto-triggered mutation, where registration automatically generates an electronic mutation request, had been implemented in 17 states.

Press reporting in August 2026 put more than 40.58 crore land parcels assigned a 14-digit ULPIN, with about 76% fully georeferenced and about 85% of spatial-textual integration complete.

The Committee's own conclusions are worth quoting because they are a warning, not a promise: several components remained pending across states, including modern record rooms, surveys and re-survey, and the integration of textual records with digitised maps. It recommended auto-triggered online mutation nationwide, fixed timelines for mutation and correction cases, consent-based Aadhaar and mobile linkage, and automatic SMS and e-mail alerts to registered landowners whenever a transaction or mutation request is submitted.

What this means at your desk

- **Good news:** in most states you can now pull the Record of Rights, the map and often the registered deed online, the same evening you see the plot. Twenty years ago this took a week of queueing.
- **Good news:** the ULPIN, where it has been assigned, is a stable identifier for the parcel. Write it into your agreement alongside the survey number and the boundaries.

- **Bad news:** ULPIN does not prove ownership. It ties a plot to a coordinate. Ownership still has to be established from the Record of Rights, the registered deed chain, the encumbrance certificate and the mutation history, together.
- **Bad news:** digitisation does not fix bad source data. Commentators noted in September 2026 that a digitised wrong entry is still a wrong entry, and that mismatches between registration and revenue records surface precisely during inheritance, sale or partition.
- **Action:** wherever your state offers SMS or e-mail alerts on your land record, register for them the day the deed is registered. It is the cheapest fraud alarm available, and the parliamentary committee has recommended it be made universal.

PART 2

The free desk check, before you pay anything

4. The ninety-minute desk check, source by source

Nine sources. All of them are free or nearly free. Do them in this order, because each one tells you whether the next is worth doing. Keep a single folder on your phone and save a dated PDF or screenshot from every source. That folder is your evidence if anything goes wrong later, and it is what your lawyer will ask for.

#	Source	What you are looking for	Cost
1	State land record portal (RoR / 7-12 / RTC / Patta / Khatauni)	Recorded owner, survey number and sub-division, area, land classification, tenure, encumbrances column, ULPIN if assigned	Free
2	Encumbrance certificate (EC) from the registration department	Every registered transaction on the parcel for the search period: sales, gifts, mortgages, releases, partitions	Small fee
3	CERSAI public search	Security interests filed by banks and NBFCs, including equitable mortgages that never appear in an EC	Small per-search fee
4	RERA portal of your state	Whether the layout is registered as a project, its registration number, the promoter's declared title affidavit, the escrow	Free
5	e-Courts and the district court record	Pending civil suits involving the parcel or the seller; also check NCLT if the seller is a company	Free
6	Layout approval file with the planning authority	Sanction number and date, approved plot area, roads, open spaces, whether the layout was released	Free to view, fee for copies
7	Master plan, zoning and acquisition maps	Land use zone, road widening lines, reservations, whether the land falls in an acquisition or notified area	Free
8	Municipal or panchayat records	Property tax arrears, electricity and water dues, whether the plot has an assessment number	Free
9	The seller's own documents	Deed chain, tax receipts, ID, PAN, and for a company or trust, the authority to sell	Free, from the seller

Two rules for this stage. First, do not accept a screenshot from the broker or the seller. Open the portal yourself, on your own phone, with your own login. Screenshots are the easiest thing in the world to edit. Second, date everything. A record pulled in January says nothing about June. Records are point-in-time facts, and frauds are often committed in the gap.

The order matters

If step 1 shows the seller is not the recorded owner, stop. Do not order the EC, do not visit the site, do not pay a token. Nine out of ten wasted site visits happen because somebody liked the plot before checking who owns it.

5. Reading the Record of Rights

Every state keeps a revenue record of who holds which parcel and on what terms. The name changes from state to state, and so does the format, but the columns are broadly the same. Learn to read one, and you can read all of them.

State	What the record is called	Where it is published
Maharashtra	7/12 extract (Satbara) and the Property Card for city survey land	Mahabhulekh / Bhulekh Maharashtra
Karnataka	RTC or Pahani, plus the mutation register	Kaveri Online Services and Bhoomi
Tamil Nadu	Patta, Chitta and Adangal; FMB sketch for the parcel map	e-Services portal of the Revenue Department / TNREGINET
Telangana	Record of Rights under the Bhu Bharati Act, 2025 (the portal replaced Dharani in 2025)	Bhu Bharati portal
Andhra Pradesh	Record of Rights and the Adangal	MeeBhoomi
Uttar Pradesh	Khatauni, with the Khasra and Khatauni numbers	Bhulekh UP
Punjab and Haryana	Jamabandi and the Fard	Jamabandi portals of each state
Gujarat	7/12 and the Form 6 village form	AnyROR
West Bengal	Record of Rights (Khatian) and the plot map	Banglar Bhumi
Kerala	Thandaper and the Basic Tax Register	ReLIS / e-Rekha

The columns that decide the deal

- **Survey number and sub-division.** The sub-division letter matters. Plot 45/2A is not plot 45/2B, and a deed that names the wrong sub-division describes a different piece of land. Compare character by character.
- **Area.** In hectares, acres, gunthas, bighas, biswas or cents depending on the state, and sometimes in more than one unit in the same record. Convert both the record and the deed into one unit yourself before you compare them. A '13 bigha' parcel in one district is not the same size as 13 bigha in another.
- **Land classification.** Agricultural (dry, wet, irrigated, plantation), non-agricultural, residential, industrial, or forest. This decides whether you may buy it at all, what you may build, and what conversion you will need.
- **Tenure.** Whether the holder is an occupant, a tenant, a mortgagee in possession, or a government lessee. A tenant's entry in the record is a warning sign, not a footnote.
- **Other rights and encumbrances.** Most state records carry a column for mortgages, attachments, court orders and acquisitions. A dash here is not proof of a clean title, but an entry here is proof of a problem.
- **Mutation history.** How the parcel came to the present holder: sale, inheritance, partition, gift, government grant. This is the plot's biography, and it is where the breaks hide.
- **ULPIN, where assigned.** The 14-digit Bhu-Aadhaar. Note it. If the record and the map disagree about the same ULPIN, that is a survey problem you must resolve before you buy.

What the record cannot tell you

It cannot tell you that the person is alive, that the person in front of you is that person, whether the land is free of a bank mortgage created by deposit of title deeds, whether there is a pending suit, whether the land has been acquired, or whether the plot is reserved for a road. Those come from chapters 6 to 10. And it cannot tell you that the title is good: it is a revenue record, kept for revenue purposes.

> **The three-way match**
> Before anything else, three descriptions must match exactly: the Record of Rights, the latest registered deed, and the physical boundaries on the ground. If any two of the three disagree on survey number, sub-division, area or boundary, you have found the problem that would have cost you the money. Fix it or walk.

6. The encumbrance certificate: what it shows and what it hides

The encumbrance certificate, or EC, is issued by the registration department. It is a list of every document registered against a particular parcel during the period you ask for: sale deeds, gift deeds, mortgages, releases, partitions, leases, court attachments. Each entry usually gives the document number, the year, the sub-registrar's office, the names of the parties, the nature of the document, and the consideration.

Ask for the longest period the office will give, and always longer than the oldest link in the title chain you are relying on. In practice, buyers and banks commonly search twenty to thirty years, and a few states issue a thirty-year certificate as standard. The certificate is valid only for the period it covers, and only for the office you searched, so if the land has moved between sub-districts, order one from each.

How to read it in ten minutes

1. Read the entries in date order, oldest first, and write them as a chain rather than a list. Each sale should have a seller who was the buyer in the entry before it.
2. For every mortgage entry, look for a matching release or discharge entry later in the list. An unreleased mortgage is a live debt attached to your land.
3. Look for entries where the consideration is absurdly low. A 'sale' for a token amount is often a family settlement or a release dressed up as a sale.
4. Look for the same parcel appearing twice with different boundaries. Duplicate descriptions are the fingerprint of a double sale.
5. Look for entries in the name of someone who is not in the chain at all: a co-owner who never appeared in the Record of Rights, a power of attorney holder, a company.
6. Check the search period in the certificate header, and check the survey number the office actually searched. A certificate for the wrong sub-division is worthless.

What the EC structurally cannot see

This is the part almost nobody explains. An EC only lists documents that were registered at the sub-registrar's office. A large share of bank lending in India is done by equitable mortgage: the borrower simply deposits the original title deeds with the bank and signs a memorandum, and no mortgage deed is registered. That charge can be completely invisible in an EC. It is, however, supposed to be filed with CERSAI. Which is chapter 7.

The EC also cannot see: unregistered agreements to sell, oral tenancies, family arrangements, pending suits that have not been attached to the property, tax dues, electricity dues, or the master plan.

> **A clean EC is necessary, not sufficient**
> Treat a clean EC as 'no registered transaction I did not know about'. That is all it says. It is a good sentence. It is not the whole story.

7. CERSAI: the check almost nobody runs

CERSAI is the Central Registry of Securitisation Asset Reconstruction and Security Interest of India. It is the national register where banks, housing finance companies and NBFCs file the security interests they hold over property. It exists because lenders kept lending against the same asset to different borrowers, and nobody could see the whole picture.

For a land buyer it is the check that catches the mortgage the EC cannot: the equitable mortgage created by depositing title deeds.

How to run it

1. Go to the official CERSAI portal and register as a public user. You will need a mobile number and e-mail for OTP verification. Public search is self-service; you do not need to be a bank.
2. Run an **asset-based search** first: property type, state, district, address, and any identifier the form accepts such as a survey or plot number. Enter the description exactly as it appears in the sale deed, then again with the variations you saw in the record.
3. Then run a **borrower-based search** on the seller, using PAN and name. This catches charges filed against the owner where the property was described loosely or under a different spelling.
4. Pay the per-search fee shown on the portal and download the report. Save it with the date visible.
5. If you find a charge, do not negotiate around it. Get the lender's sanction letter, the current loan statement, and a written closure or no-objection letter, and confirm that the charge has been satisfied on CERSAI itself.

Reading the result honestly

A positive result lists the secured creditor, the type of charge, the date it was created and whether it is open or satisfied. An open charge means somebody has a claim on the land. A satisfied charge should still be backed by the lender's release letter, because a satisfaction entry with the wrong amount or the wrong asset description may be a partial release.

A 'no record found' result means only this: for the exact details you typed, no security interest is currently registered. It is scoped to your inputs, and it reflects what lenders filed. A bank that filed late, filed badly, or did not file at all leaves no trace. So try variants: village name spellings, the survey number with and without the sub-division, the owner's name with and without initials. And run it again close to the payment date, not three weeks earlier.

8. The title chain: the mother deed and the five links

The title chain is the sequence of registered documents by which ownership travelled from an early owner to your seller. The oldest document in the chain you can produce is often called the mother deed. A thirty-year chain is the common working standard in Indian conveyancing, and it is roughly what lenders ask for; longer is better, and for agricultural land with a family history, much longer is often necessary.

Do not read the chain as a story. Read it as five links, and test each link with four questions.

Link	The document you need	The question it answers
1. Origin	Mother deed or the oldest available registered instrument, plus the revenue record of that period	Where did this ownership begin, and was that transfer itself valid and registered?
2. Transfers	Every sale, gift, exchange or settlement deed in between, in order	Did each transferor actually own what he transferred, and was the deed registered?
3. Succession	Partition deeds, probate, letters of administration, legal heir certificate, succession certificate, family settlement	If an owner died, did the property pass by a document, or only by hope?
4. Encumbrances	Mortgages and their releases, attachments, court orders	Is the parcel carrying a debt or a restriction that survives the sale?
5. Present title	The seller's own deed, the current Record of Rights, the latest EC, the mutation order	Does the seller hold what he is selling, today, in every record?

The four questions for every link

1. **Who signed?** Every person shown as an owner at that point must have signed the document, or a competent court must have authorised someone to sign for them.
2. **Was it registered?** An unregistered sale deed conveys nothing. Under section 54 of the Transfer of Property Act, sale of tangible immovable property of the value of one hundred rupees or more can be made only by a registered instrument, and section 49 of the Registration Act keeps an unregistered document out as evidence of title.
3. **Was the property described the same way?** Survey number, sub-division, area and boundaries must be consistent across the chain. Where they change, there must be a document explaining why: a survey renumbering, a consolidation, a subdivision.
4. **Was the stamp duty paid?** An under-stamped document is not merely a tax problem. Under section 35 of the Indian Stamp Act an instrument that is not duly stamped is inadmissible in evidence until the deficit and penalty are paid, which is a poor position to discover during a lawsuit.

The four classic breaks

- **The unregistered partition.** A family divides land by a plain paper or a panchayat decision. Nothing is registered. Forty years later, half the family is not on the record and the other half sells. The buyers inherit a lawsuit.
- **The heir who was never asked.** An owner dies without a will. Under Hindu succession law the property devolves on several heirs. One heir sells using only his own name. Every other heir has a claim, and one of them will eventually appear.
- **The power-of-attorney sale.** Somebody buys 'through GPA'. The Supreme Court settled this in *Suraj Lamp & Industries v. State of Haryana* on 11 October 2011: an agreement to sell, a general power of attorney and a will, taken together, do not convey title. A power of attorney is an agency, not a transfer. Even an irrevocable power of attorney does not transfer title to the holder. Such transactions cannot be the basis for mutation in municipal or revenue records.
- **The missing link sale.** A deed in the chain refers to a previous owner whose deed is not in the file, and the explanation is 'it is with the bank' or 'it was lost'. Sometimes true. Always a stop-and-verify.

How to close the chain

Ask the seller for a written, indexed list of every document in the chain, with the sub-registrar's office and document number for each. Then verify each one against the EC. A chain that exists only in a plastic bag is not a chain; a chain that matches the registration register is.

9. Agricultural land, conversion and zoning

A large share of plots sold on the outskirts of Indian cities are agricultural land with a layout drawn on top. That is not automatically a problem. It becomes a problem when nobody has done the legal work to turn farm land into buildable plots, and the buyer finds out after paying.

Can you even buy it?

Several states restrict the purchase of agricultural land by people who are not agriculturists, and some restrict purchases by non-residents of the state. The rules differ, they are amended, and they are enforced unevenly, which is exactly why you must check rather than assume. Two practical consequences follow. First, ask the sub-registrar's office or a local lawyer whether a person in your position can be registered as the holder of this classification of land. Second, if the answer is 'only after conversion', the conversion becomes a condition precedent in your agreement, not a promise for later.

Conversion, in the states that have it

Converting agricultural land to non-agricultural use is a revenue department process, known in different states as NA conversion, CLU (change of land use), land use conversion, or diversion. In Telangana, for example, conversion to non-agricultural land is one of the services offered on the Bhu Bharati portal that replaced Dharani in 2025, alongside mutations, appeals and record corrections.

Whatever it is called locally, the questions are the same: who applies, what is the fee, what documents does the application need, how long does it take, and what happens to the land's classification in the record once it is granted. Get the order copy, not a verbal assurance. The conversion order is the document that makes your plot a plot.

Zoning and acquisition: the check on a different map

Zoning is not the same question as conversion. Conversion says the land may stop being farm land. Zoning says what the planning authority intends for that area: residential, commercial, industrial, agricultural, green belt, or reserved for a road, a drain, a park or a public purpose.

1. Open the master plan or development plan for the area and locate the survey number. Not the layout brochure; the actual plan.
2. Look for road widening lines and reservations drawn across your parcel. A plot that a proposed road will cut in half is priced as if the road does not exist.
3. Check whether the area is inside a notified planning area, an industrial township, a special economic zone, or a notified acquisition zone.
4. Check the record for acquisition entries and for the acquisition awards. The Zirakpur case in chapter 2 is exactly this failure: land already acquired by a development authority, sold on forged records.
5. Check whether the parcel is affected by a coastal regulation zone, a forest boundary, a water body buffer or a defence restriction, if any of these apply to your district.

One more thing, and it is not on any portal: walk the access. A plot with no legal approach road, or whose only access crosses somebody else's land, is a plot you may not be able to build on or sell. Ask for the approach road's ownership and width, and see it on the layout.

10. Layout approvals: what makes a plot buildable

If you are buying a plot inside a formed layout, the layout itself needs approval from the planning authority of that area, and the approval has a number, a date, an approved plan and a set of conditions. Ask for all of it.

In practice, the sanctioning body is whichever authority has jurisdiction: a development authority, a metropolitan development authority, a urban development authority, a directorate of town and country planning, or a municipal corporation or panchayat for smaller layouts. The names change; the file looks the same.

What to check in the approval file

- The sanction number and date, and whether the sanctioned plan matches the layout drawing the seller is showing you. Sellers routinely show an older or a larger version.
- The approved plot numbers and areas, and whether your plot number exists in the sanctioned plan at all.
- The internal road widths, and whether the roads on the ground match the sanctioned widths. A road narrowed to squeeze in two extra plots is a common trick.
- The open space and amenity reservations, and whether they have been handed over or quietly sold as plots.
- Whether the layout was 'released' after development, and whether the plots have individual assessment numbers with the municipality or panchayat.
- Whether the developer has paid the development charges and any betterment charges, and whether those are being passed to you.

An unapproved layout is not necessarily illegal land. It is land where the risk has been transferred from the developer to you: you will carry the cost and the delay of regularisation, and in some cases you cannot get a building permit, a bank loan or a municipal water connection until it is regularised.

11. RERA for plotted projects, and the 500 sq m / 8-plot trap

The Real Estate (Regulation and Development) Act, 2016 applies to plots, not only to flats. The definition of a real estate project expressly includes the development of land into plots for the purpose of selling all or some of them. If you are buying a plot in a plotted development, RERA is one of your strongest tools, and it is free to use.

When registration is mandatory

Section 3(1) says no promoter may advertise, market, book, sell or offer for sale, or invite persons to purchase, any plot, apartment or building in a real estate project in a planning area without registering the project with the state authority.

Section 3(2)(a) exempts a project where the area of land proposed to be developed does not exceed five hundred square metres, or the number of apartments proposed to be developed does not exceed eight, inclusive of all phases. The explanation to the section says that where a project is developed in phases, every phase is treated as a standalone project and must be registered separately.

The trap: two authorities read the same sentence differently

The word in section 3(2)(a) is 'or', and regulators have split on what it means for plots.

The Kerala Real Estate Regulatory Authority, in an order of 18 May 2023, read the provision strictly in favour of the buyer and directed that a project must be registered where the land proposed to be developed exceeds 500 square metres, or where the number of apartments exceeds eight, and warned that developers were evading registration by claiming their project did not meet all requirements. On that reading, a plotted layout of more than 500 square metres must register however few plots it has.

The Goa authority, by circular in 2023, took the opposite view: a project where the land is 500 square metres or less does not require registration irrespective of the number of units, and a project of eight units or fewer does

not require registration irrespective of the land area.

The practical consequence for you: do not accept 'it is small, so it is exempt' as an answer. Ask your state authority's own published position, and ask the seller for the registration number. If a plotted project is being marketed to the public and is not registered, that is itself information.

What registration gives you

- **The title affidavit.** Under section 4(2)(l), the promoter must file a declaration supported by an affidavit stating that he has legal title to the land along with legally valid documents authenticating that title, and stating that the land is free from all encumbrances, or setting out the encumbrances with details. Ask for that affidavit. It is a sworn statement about exactly the thing you are worried about.
- **The escrow.** The same declaration says that seventy per cent of the amounts realised from allottees shall be deposited in a separate account in a scheduled bank, to cover the cost of construction and land. Money in a project that is not in that account is money at risk.
- **A refund right if the project stalls.** Section 18(1): if the promoter fails to complete or is unable to give possession in accordance with the agreement, or because his business is discontinued, he is liable on demand to return the amount received with interest, if the allottee wishes to withdraw.
- **Compensation for a defective title.** Section 18(2): the promoter must compensate allottees for loss caused by defective title of the land on which the project is being developed. This is a rare and valuable provision: it puts the title risk on the promoter, in a statute.
- **Consequences for the promoter.** Section 59 provides a penalty of up to ten per cent of the estimated cost of the project for contravening section 3, and continuing violation can bring imprisonment up to three years or a further penalty of up to ten per cent, or both.

> **Three things to ask any plotted developer**
> What is your RERA registration number for this project, and which phase does it cover? Can I see the section 4(2)(l) title affidavit? Which scheduled bank account holds the seventy per cent, and will you show me the deposits? A developer with a clean file answers in one minute.

12. The seller check: identity, co-owners, heirs, power of attorney

Everything in this chapter exists because of one fact from chapter 2: registration does not verify identity. The sub-registrar records what is put in front of him. If an impostor with a good forged Aadhaar walks in, the deed gets registered.

Step one: establish who the recorded owner is, today

Take the Record of Rights and the latest registered deed, and write down every name that appears as owner. Not the broker's version. The record's version. Then answer: are all of these people alive, are they all selling, and can they all sign?

Step two: meet the person, not the paper

1. Meet at the property or at the seller's own address, not at a hotel lobby or the broker's office.
2. Ask for the original Aadhaar and PAN and compare the photo, the name and the date of birth with the deed and the record. Photograph them, with the seller's knowledge.
3. Verify the Aadhaar through a legitimate verification route rather than trusting the card. Ask the seller to authenticate in front of you on the Aadhaar app if he is willing.
4. Ask two questions only the real owner can answer: who was the previous owner and when did he buy, and what is the name of the village officer or the neighbours on either side. An impostor who has been briefed can answer the first; the second is harder.

5. Check that the bank account into which the sale money will go is in the seller's own name, and matches the PAN. The Ahmedabad case in chapter 2 turned on bank accounts opened in the real owners' names with forged documents. Pay by cheque or RTGS to the account named in the deed, never to a broker's account, never to a third party.

Step three: find the people who are not in the room

- **Co-owners.** If the record shows two or more holders, every one of them must sign, or must have executed a registered release or partition in favour of the seller.
- **Legal heirs of a deceased owner.** Death does not remove a name from a record quickly. If the last owner died, you need the succession document: probate, letters of administration, a succession certificate where applicable, or a registered family settlement signed by all heirs.
- **The spouse's interest.** Where the property is matrimonial or jointly funded, a spouse who is not on the record can still create trouble. Ask directly, and where the seller is married, consider a written no-objection.
- **Minors.** A minor's share cannot be sold by a parent without the permission of the court. If a minor appears anywhere in the chain, get the court order.
- **Company, trust or society sellers.** Get the board resolution, the authority letter, the memorandum or trust deed, and the names of the persons authorised to sign. Then verify that those persons exist and hold those designations.

Step four: power of attorney, handled carefully

A seller's agent can lawfully sell for him, but only if the power of attorney is genuine, is registered where registration is required, is currently in force, and has not been revoked. Since 2011 the Supreme Court has been clear that a power of attorney is an agency, not a transfer, so a sale by an attorney holder conveys title only because it is executed on behalf of the owner, not because the power of attorney itself transfers anything.

If the seller is represented by an attorney holder, insist on: the original registered power of attorney, the principal's identity documents, a video call or a physical meeting with the principal, and a written confirmation from the principal that the power is alive and the sale is authorised. If the principal is abroad, this is where the consular attestation and apostille chain matters, and where an NRI sale most often goes wrong.

> **The two questions that break most impostures**
> Ask the seller to walk you to the plot and point out the boundaries and the neighbours. Then ask him to come with you to the sub-registrar's office and be photographed at the counter. An honest seller finds both requests normal. An impostor finds excuses, and the excuses are the answer.

PART 3

The money

13. What it really costs: stamp duty, registration, cess, TDS

The cheque you write to the seller is the visible cost. The invisible one is what the state charges to record the transfer, and it is charged on the government's own valuation of the property, not on what you negotiated.

The five components

- **Stamp duty.** A percentage of the chargeable value, set by the state. It is usually charged on the higher of the consideration in the deed and the government's notified minimum value for that locality, road width, property type and amenities. That minimum is called the circle rate, guidance value, ready reckoner rate or jantri rate depending on the state.
- **Registration fee.** A percentage of the same value, or a fixed or capped fee, set by the state. In Maharashtra it is commonly one per cent subject to a cap; in Tamil Nadu it is four per cent; in Karnataka it was revised upwards in 2025. Always check the current figure on the state portal.
- **Transfer duty or cess.** Some states levy an additional transfer duty, metro cess, labour cess, urban surcharge or local body tax on top of stamp duty. This is the line buyers forget, and it is often a full percentage point or more.
- **TDS.** One per cent on the consideration or the stamp duty value, whichever is higher, where that value is fifty lakh rupees or more, deducted by the buyer and paid to the government in the seller's name. Chapter 14.
- **The private costs.** Brokerage, lawyer's fee, survey and measurement, travel, conversion charges if the land is agricultural, development charges to the layout developer, and the cost of any document you have to reconstruct.

Worked example, with official Telangana rates

Telangana publishes its ready reckoner of stamp duty, transfer duty and registration fee on the registration department's own website. For a sale deed it lists, in the non-Gram Panchayat areas, stamp duty at 5.50%, transfer duty at 1.50% and registration fee at 0.50%, charged on the market value or the consideration, whichever is higher. In Gram Panchayat areas it lists stamp duty at 5.50%, transfer duty at nil, and registration fee at 2.00%.

So on a plot with a chargeable value of Rs 80,00,000 in a municipal area of Telangana:

Component	Rate	Amount
Stamp duty	5.50%	Rs 4,40,000
Transfer duty	1.50%	Rs 1,20,000
Registration fee	0.50%	Rs 40,000
Total government charges	7.50%	Rs 6,00,000
TDS at 1% (value Rs 50 lakh or more)	1.00%	Rs 80,000 (deposited in the seller's name, credited to him)

Notice three things about that table. The government's 7.5% is real money on top of the price. The TDS is not an extra tax on you: it is part of the price, withheld and paid to the government, and the seller gets credit for it. And the chargeable value may be higher than your negotiated price, because the guidance value is a floor, not a suggestion.

In the states we checked for this edition, all-in government charges on a normal residential transfer ranged from roughly six per cent to roughly eleven per cent. Treat seven to eight per cent as a planning number and confirm your state's exact rates on its registration portal before you commit, because these are revised in state budgets and in some states have moved recently.

The two state-specific traps

The agreement-with-possession trap. In several states, an agreement to sell that hands over possession is charged almost like a sale. Telangana's ready reckoner, for instance, lists a 'sale agreement with possession' at 5.50% stamp duty (adjustable against the sale deed) plus a registration fee of 0.5% subject to a minimum of Rs 1,000 and a maximum of Rs 50,000, against 0.50% (not adjustable) for an agreement without possession. If you take possession early, you may be paying conveyance-level duty twice over if you are not careful about the adjustment.

The GPA trap. An agreement of sale cum general power of attorney is separately and heavily taxed in several states precisely because it was used to avoid conveyance duty. Do not accept one. Chapter 8 explains why it also fails in law.

GST

Sale of land itself is outside the GST net, so you do not pay GST on the price of the plot. What can carry GST is a service: development charges, construction, maintenance or a works contract charged by a developer or a layout promoter. If the seller is issuing a separate invoice for 'development charges', ask what the tax treatment is and get it in writing, because the rate and the classification of such charges have been the subject of clarification and change.

14. Cash, benami and the TDS you must deduct yourself

The cash problem

A large number of Indian land deals still involve part payment in cash. It feels normal, it is often demanded, and it is a mistake with three separate consequences.

- **It is a tax offence in itself.** Income-tax law bars the receipt of two lakh rupees or more in cash in a single transaction, or in aggregate for one event or occasion. A property payment in cash above that limit exposes both sides.
- **It destroys your own evidence.** When the fraud is discovered, your case rests on what you can prove you paid. A bank trail is proof. Cash is a story. In the reported cases, the buyers who recovered anything were the ones with RTGS records.
- **It corrupts the deed.** If the deed records Rs 40 lakh and you paid Rs 60 lakh, the deed is your only registered evidence of price, and the stamp duty and the TDS are computed on a number that is not the truth. Every later remedy, including a refund or a damages claim, is measured against the deed.

Benami: the risk that runs the other way

The other half of the cash problem is buying in somebody else's name. Under the Prohibition of Benami Property Transactions Act, 1988 as amended in 2016, a benami transaction is one where property is held by one person but the consideration was provided by another, for the benefit of that other. Section 53 provides that a person who enters into a benami transaction to defeat the law, avoid statutory dues or avoid payment to creditors is punishable with rigorous imprisonment of not less than one year and up to seven years, and a fine of up to twenty-five per cent of the fair market value of the property. Both the beneficial owner and the benamidar are liable.

There are real exceptions, and they matter for ordinary families: property held by a karta or member of a Hindu undivided family out of known family sources, property held in the name of a spouse or child where the consideration came from the individual's known sources, and property held in the name of a brother, sister or lineal ancestor or descendant where the names appear as joint owners and the consideration came from the

individual's known sources. Those are family arrangements, not benami schemes. Buying land in a friend's or a cousin's name to dodge a rule is not.

The TDS you must deduct

This is the single most commonly missed obligation of a land buyer, and it is the buyer's personal liability, not the seller's.

From 1 April 2026 the income-tax law in force is the Income-tax Act, 2025. The old section 194-IA has been carried into section 393(1), Table, Sl. No. 3(i). The substance is unchanged: where a person pays consideration for the transfer of immovable property, other than agricultural land, to a resident seller, and the consideration or the stamp duty value is fifty lakh rupees or more, tax must be deducted at one per cent of the consideration or the stamp duty value, whichever is higher.

- **Agricultural land is excluded.** No TDS on the purchase of agricultural land from a resident seller, whatever the price.
- **The threshold is aggregate.** Where there are multiple buyers or multiple sellers, the fifty lakh test is applied to the total paid by all buyers to all sellers for that property, and each buyer deducts on his own share.
- **'Consideration' is wider than the price.** It includes charges incidental to the transfer: club membership, car parking, electricity or water facility charges, maintenance and advance fees. A Rs 60 lakh flat with Rs 2 lakh parking and Rs 1 lakh club membership is a Rs 63 lakh base.
- **Deduct at each payment.** The obligation arises at the time of payment or credit, whichever is earlier: the token advance, each instalment, and even the amount a bank disburses directly to the seller from your loan. The duty stays with you even when the bank makes the payment.
- **No TAN is needed.** You file the challan-cum-statement from your own PAN login on the income-tax e-filing portal. Under the 2025 Act the old Form 26QB is replaced by Form 141, and the certificate to the seller by Form 132. Check the current form on the portal before you file.
- **A seller without a valid PAN** attracts a higher rate, so verify the PAN and confirm it is linked to Aadhaar before you deduct.

> **The sequence in one line**
> Deduct 1% at every payment, deposit it against the seller's PAN within the statutory due date, file the statement, generate the certificate, hand it to the seller. He needs it for his own capital gains computation, and you need it to avoid interest and penalty under the 2025 Act.

15. The payment architecture: seven rules

How you pay decides how much you can recover. These seven rules are the difference between a buyer with a remedy and a buyer with a story.

1. **Pay a small, documented token, and make it conditional.** A token of a token's worth is fine: one per cent or less, by cheque or transfer, against a written receipt that says what it is for and that it is refundable if the title check fails. Never pay a large advance to 'block' a plot before the desk check.
2. **Tie every subsequent payment to a document.** Payment one against the agreement to sell. Payment two against delivery of the complete document set. Payment three against the encumbrance certificate and CERSAI report being clean as of that week. Final payment at registration, in the sub-registrar's office or immediately after, against the registered deed.
3. **Never pay against a photocopy.** Originals are handed over at registration, or into escrow, not before.

4. **Pay only to the seller's own account,** in the name on the deed, by cheque or RTGS, with a reference that identifies the property. Never to a broker, never to a relative, never to a firm 'on the seller's behalf' without a registered authority.
5. **Put a date and a consequence in the agreement.** If the seller does not complete by the long-stop date, he refunds the entire amount with interest, and pays a stated penalty. An agreement with no consequence for the seller is a letter of intent, not a contract.
6. **Take possession only when the deed is registered,** or under a written licence that says possession is not a transfer and does not attract conveyance duty.
7. **Keep a payment register.** Date, amount, mode, cheque or UTR number, purpose, document delivered, TDS deducted. One page, updated the same day. It is the single most useful document in a dispute.

> **The one sentence to say to a pushy seller**
> 'I will pay the balance in the sub-registrar's office, against the registered deed, after my lawyer confirms the encumbrance certificate and the CERSAI report are clean this week.' Any seller who refuses that sentence has told you something important.

PART 4

The paperwork

16. The agreement to sell: eighteen clauses that matter

The agreement to sell is the most under-drafted document in Indian property transactions, and the most useful. It does not transfer title, but it fixes the terms, the deadlines, the documents, the consequences and the price. Get it wrong and every later dispute is a contest of memory.

Draft it as a written contract on stamp paper of the value your state requires, signed by both sides on every page, with two witnesses, and registered where your state charges or requires it. Then read these eighteen clauses against it.

1. **Parties, in full.** Full legal names, father's or husband's name, ages, addresses, PAN and Aadhaar reference for each seller, and the capacity in which each signs.
2. **The property, described three ways.** Survey or plot number with sub-division, area in the local unit and its conversion, and the boundaries by name of the adjoining owners or roads on all four sides. Add the ULPIN if assigned.
3. **Title recital and warranty.** The seller states he is the absolute owner, that the property is free of encumbrances except those listed, and that he has full right to sell. Make the exceptions list explicit; a blank is a warranty.
4. **The document schedule.** An annexure listing every document the seller will hand over, with a date for each. This single annexure prevents most 'it is with the bank' conversations.
5. **Conditions precedent.** Everything that must be true before completion: conversion order, layout sanction, release of mortgage, NOC from a society or a co-owner, mutation of an earlier transfer. Each with a deadline.
6. **Price and payment schedule,** with each instalment tied to a document or an event, as in chapter 15.
7. **Who pays what.** Stamp duty, registration fee, cess, TDS, brokerage, legal fees, conversion charges and dues. Name the payer for each; do not write 'as usual'.
8. **Dues and outgoings.** The seller clears property tax, electricity, water and maintenance up to the date of registration, and produces receipts.
9. **Possession.** The date, the manner, and the condition. If possession is given before registration, say expressly that it is a licence pending conveyance.
10. **Encumbrances and litigation.** The seller warrants no pending suit, attachment, acquisition or notice, and indemnifies you against any that surface.
11. **The long-stop date.** A specific calendar date for registration, not 'within three months or so'.
12. **Seller default.** Refund of the full amount with interest at a stated rate, plus liquidated damages, plus your documented costs, within a stated number of days.
13. **Buyer default.** What is forfeited, and what is returned. Keep it proportionate; a forfeiture clause that swallows the whole advance may be tested as a penalty.
14. **Specific performance.** An express clause that the parties agree the agreement may be specifically enforced, and that the buyer is ready and willing to perform. This is what makes a refusal to register litigable.
15. **No further encumbrance.** The seller undertakes not to sell, mortgage, lease or otherwise deal with the property between the date of the agreement and registration, and agrees to an injunction if he does.

16. **Notices.** Addresses, e-mail and mobile numbers for every notice, and a clause that a notice sent to the stated address is validly served.
17. **Dispute resolution.** The courts that will have jurisdiction, or an arbitration clause if both sides genuinely want one, plus who bears costs.
18. **Entire agreement and amendments.** Nothing oral counts, and any change must be in a signed writing. This is the clause that kills 'but the broker promised'.

Two additions worth making. First, a public notice: a small advertisement in a local newspaper inviting objections to the proposed sale, with a stated deadline. It is not legally compulsory, and it is cheap, and it is the single best defence against a hidden heir or a prior agreement. The Navi Mumbai case in chapter 2 shows a buyer who did exactly this, and it did not save him, because the fraud was an impersonation rather than a hidden claimant; but it does close the hidden-claimant door. Second, a clause that the seller will appear in person, with original identity documents, at the sub-registrar's office, and will be photographed and biometrically authenticated there.

17. Registration day: the twenty-two point counter check

Registration is the moment the transfer happens, and it takes about an hour. In that hour you can prevent most of what this book is about. Print this page and take it with you.

1. The sub-registrar's office is the one with jurisdiction over the property. Confirm before the appointment; a deed registered at the wrong office is a defect.
2. The stamp duty has been paid on the correct chargeable value, at the current rate, and the e-stamp certificate or stamp paper is in the correct names.
3. The registration fee has been computed on the same value and paid.
4. The deed is typed, paginated, and every page is signed by both parties.
5. The seller is physically present, and is the person in the deed.
6. The seller's original Aadhaar and PAN are in hand, and the biometric or OTP authentication is done by him, not by an agent.
7. The photographs taken at the counter are of the seller and of you, not of stand-ins.
8. The seller's photograph in the deed matches the person in front of you and the photograph on his identity documents.
9. Every co-owner named in the Record of Rights is present or is represented by a registered power of attorney or a registered release.
10. The two witnesses are present with their identity documents, and they are not employees of the broker.
11. The property schedule in the deed matches the Record of Rights exactly: survey number, sub-division, area, boundaries.
12. The area is stated in the same unit as the record, or the conversion is stated in the deed.
13. The boundaries name the actual adjoining owners or roads as they exist today.
14. The consideration is stated in words and figures and they agree.
15. The receipt of consideration is signed by the seller, and it matches the amount actually paid before registration.
16. The payment mode is stated, and cash beyond the permitted limit is not part of it.
17. The TDS position is recorded, and the deduction has been or will be deposited with the correct PAN.

18. Any conditions in the agreement (conversion, release of mortgage, NOC) are recited as satisfied, or expressly carried forward with a deadline.
19. The seller declares the property free of encumbrances, or the encumbrances are listed and addressed.
20. The deed is read back to you, or you read it, before you sign. Not skimmed. Read.
21. The registered deed and the index number are collected, and the receipt for the registration is kept.
22. The date, the document number and the office are photographed on the day, and the same details are entered in your title file that evening.

> **The rule nobody regrets**
> Never sign a deed you have not read, and never sign one whose schedule you have not compared with the Record of Rights, line by line, in that room. Ten minutes at the counter is worth more than ten years in court.

18. The ninety days after: mutation, tax, alerts, the title file

Registration transfers title. It does not update the revenue record, the municipal assessment, the electricity connection, or the society register. Those are separate errands, and each one has a deadline and a queue.

Mutation, within days

Mutation is the process of updating the Record of Rights after a sale, inheritance, partition or court order. In seventeen states, registration now automatically generates an electronic mutation request, and the parliamentary committee has recommended that this be extended nationwide. Where it is automatic, your job is to follow the request and confirm it is decided. Where it is not, you must apply.

Two things to understand. First, mutation does not create title; it updates a revenue record. Second, mutation is your fraud alarm: the process sends notice to the persons on the record, and in the Ahmedabad case in chapter 2 that is exactly how a Rs 4.70 crore fraud surfaced. Do it immediately, and read every notice that arrives.

The other transfers

- **Municipal or panchayat records.** Get the property entered in your name, and clear any arrears shown against the old assessment number.
- **Electricity and water.** Apply for a name change with the registered deed, the mutation order and identity proof. In many states an unpaid dues certificate is required.
- **Society or association, if the plot is in one.** Lodge the deed, get the share certificate or membership transferred, and update the register of members.
- **Bank records.** If you bought with a loan, the lender will register its own charge. Keep your own copy of everything you signed.
- **Alerts.** Register for SMS and e-mail alerts on your land record wherever the state offers them, so that any future transaction or mutation request against your parcel reaches you immediately.
- **Insurance and tax calendar.** Land revenue or property tax falls due on a schedule. A missed payment creates an arrears entry that will embarrass you at resale.

The title file

One folder, physical and digital, indexed, kept forever, and copied to a second place. It should contain: the registered sale deed; the agreement to sell; the complete chain of earlier deeds; the encumbrance certificate you ordered before purchase; the CERSAI search report; the RERA registration details and the title affidavit if it was a plotted project; the layout sanction and the approved plan; the conversion order if any; the latest Record of Rights showing your name; the mutation order; tax and utility receipts; the TDS challan and the certificate; the payment register; and the photographs of the site and of the registration. Everything in that list is something a future buyer, a bank, or a court will ask you for, and none of it can be recreated later.

PART 5

When it goes wrong

19. The stop list: eleven red flags

Any one of these is enough to pause the deal. Two of them together, and you should walk, however good the price is. The price is good because of the flag.

1. The seller is not the person named in the Record of Rights, or the record is in the name of someone who died years ago and no succession document exists.
2. The sale is to be done by general power of attorney, or by 'agreement + GPA + will', or by a notarised agreement alone.
3. The seller wants a large advance before you have seen the encumbrance certificate, the CERSAI result and the title chain.
4. The original title deeds are 'with the bank', 'with a relative', 'lost', or 'in the developer's office', and cannot be produced before payment.
5. The survey number, sub-division, area or boundaries differ between the record, the deed and the ground, and nobody can explain the difference with a document.
6. There is a pending suit, an attachment, a court injunction or a revenue court case touching the parcel or the seller.
7. The land is agricultural and nobody can tell you, in writing, how and when it will be converted, or whether you may buy it at all.
8. The layout has no sanction number, or the sanctioned plan does not contain your plot number, or the roads on the ground are narrower than the sanctioned plan.
9. A public authority has acquired the land, or the master plan reserves it for a road or a public purpose.
10. The price is to be split with a cash component above the legal limit, or the deed is to record less than you actually pay.
11. Everyone is in a hurry, the seller is 'flying out tomorrow', the broker discourages your lawyer, and the documents are shown but not given.

There is a twelfth, softer flag that is worth naming: the deal that only makes sense if you stop asking questions. In every reported case, somebody asked a question, was talked out of it, and paid. The talking-out is the tell.

20. If you have already paid: the first seven days

If you have discovered that the seller was not the owner, or that the land was already sold, or that the documents were forged, the first week decides how much you recover. Move in this order, and do not do it alone.

1. **Day 1: stop paying, and write everything down.** No further instalments, no 'settlement' payment, no promise of a post-dated cheque. Then write a dated timeline: who introduced the seller, what was shown, what was paid, when, by what mode, and to which account. Attach the bank statements.
2. **Day 1: preserve the evidence.** Original documents, WhatsApp chats, call recordings where lawful, e-mails, the broker's number, photographs, and the identity documents you were shown. Do not hand originals to anyone, including the broker, without a written receipt.

3. **Day 2: engage a lawyer.** A property or criminal lawyer in the district where the land is. Take the timeline and the documents. Ask specifically about a criminal complaint and a civil suit running together, and about an application for an injunction.
4. **Day 2 or 3: the police complaint.** Impersonation, forgery, cheating and criminal conspiracy are offences under the Bharatiya Nyaya Sanhita, and this is what the police registered in the 2026 cases described in chapter 2. A written complaint at the police station, with a receipt, is the start; if it is not registered, the route is to the Superintendent of Police and then to the Magistrate.
5. **Day 3: tell the sub-registrar in writing.** Apply to the registering office for a copy of the registered deed and the supporting documents, and put on record that the transaction is disputed, with the reasons. Ask your lawyer whether a notice of the pending suit should be registered so that a later buyer cannot claim ignorance.
6. **Day 4: freeze the money's path.** Ask your bank in writing to flag the transaction, and ask the lawyer about attaching the receiving account. Speed matters: money moved twice is money gone.
7. **Day 5: the civil side.** Depending on the facts, the suit may be for a declaration that the deed is void, for possession, for cancellation of the deed, for a permanent injunction, or for specific performance against the real owner if there was a genuine contract. Limitation periods are short and fact-specific, which is why this cannot wait.
8. **Day 6: the regulator, if it is a project.** If the plot was in a registered plotted project, a complaint to the state RERA authority can be filed, and section 18(2) puts the risk of a defective title on the promoter.
9. **Day 7: protect the record.** Register the mutation objection, if a mutation has been moved, and check whether any other application has been filed against the parcel. Then keep a single file, and a single calendar of dates.

What recovery usually looks like

In the reported 2026 cases, the arrests came from police investigation, and the money came back slowly, in part, and often only after a settlement. The buyers who did best had a bank trail, a written timeline, and a lawyer engaged within a week. That is not a guarantee. It is the difference between a case and a complaint.

PART 6

Special situations

21. NRIs, OCIs and foreign nationals

The foreign exchange rules on property are short, clear and frequently misunderstood. They are set out in the Foreign Exchange Management (Acquisition and Transfer of Immovable Property in India) Regulations, 2018 and the Non-Debt Instrument Rules, 2019, and summarised in the Reserve Bank's own FAQs.

What an NRI or OCI may buy

An NRI or an OCI may acquire immovable property in India by purchase, other than agricultural land, a farm house or plantation property. The consideration must come through banking channels, by inward remittance from outside India, or from funds in a non-resident account maintained under the Act. Payment by traveller's cheque or foreign currency notes is not permitted. There is no restriction on the number of residential or commercial properties an NRI or OCI may buy in his own name.

An NRI or OCI may also acquire property other than agricultural land, a farm house or plantation property by gift from a resident, an NRI or an OCI who is a relative, and may acquire any immovable property by inheritance. They may sell to a resident, and may sell non-agricultural property to another NRI or OCI. Agricultural land, a farm house or a plantation property may be sold only to a resident.

The four traps

- **Agricultural land is a hard no for purchase.** If the plot you like is classified agricultural in the revenue record, an NRI or OCI buyer cannot simply buy it and convert later. Check the classification before you fall in love with the land.
- **The money must come through the banking system.** An NRI who pays a relative in cash abroad, or brings foreign currency, has created a problem that surfaces at the time of repatriation.
- **Citizens of certain countries need prior RBI permission.** Citizens of Pakistan, Bangladesh, Sri Lanka, Afghanistan, China, Iran, Nepal, Bhutan, Hong Kong, Macau and the Democratic People's Republic of Korea cannot acquire or transfer immovable property in India without the prior permission of the Reserve Bank, other than a lease not exceeding five years. The prohibition does not apply to an OCI.
- **Repatriation has its own conditions.** The sale proceeds of a property acquired under the general permission may be repatriated subject to the conditions in the regulations, and the paper trail you keep at purchase is what makes that possible years later.

Selling as an NRI: the buyer's extra duty

If your seller is a non-resident, the TDS rules are different and much heavier: the deduction is under section 393(2) of the Income-tax Act, 2025, and the rate is not the 1% that applies to a resident seller. The buyer must obtain the lower-deduction certificate or deduct at the higher rate. This is a specialist area, and getting it wrong makes the buyer personally liable for a large sum. If the seller is an NRI, budget for a chartered accountant before you sign, not after.

22. Buying at a bank auction

Banks and asset reconstruction companies sell repossessed property under the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002, usually through an online auction portal. The prices can be attractive. The rules are entirely different from a private sale, and the buyer carries risks that a private sale would have allocated to the seller.

- Read the sale notice, the terms and conditions and the possession status. Auctions are commonly 'as is, where is, whatever there is', with no warranty of title or condition.

- Check whether the property is in physical possession of the borrower or a tenant, and whether the bank has taken symbolic or actual possession. Vacant possession is worth a great deal; a sitting tenant is a lawsuit.
- Check the outstanding dues that travel with the property: property tax, electricity, water and maintenance. In an auction these often become the buyer's problem.
- Check the title the bank itself holds: the mortgage documents, whether the mortgage was properly created and registered, and whether the borrower had a clear title to mortgage.
- Check the reserve price, the earnest money deposit, the payment timeline and the consequence of default. Auction deposits are usually forfeited on default.
- Verify the property in the revenue and registration records exactly as you would a private purchase: the EC, CERSAI, the record, the zoning, the layout.
- Get a lawyer to read the terms before you deposit a rupee. The contract you accept at the click of a button is the contract you are held to.

23. Joint ownership, nomination and the will

Two small decisions at the time of purchase decide how easily the property passes later, and they cost nothing to get right.

How you hold it

Joint owners can hold as joint tenants, where the survivor takes the whole on the death of the other, or as tenants in common, where each holds a defined share that passes to his own heirs. In India, most joint purchases are as tenants in common with defined shares unless the deed says otherwise, and many deeds say nothing at all. Write the share in the deed: 'the purchaser numbers one and two hold 50% each as tenants in common'. It prevents a partition dispute between two families twenty years later.

For a married couple, holding as joint tenants with a survivorship clause is often the simpler choice, because the property passes to the survivor without probate. It also has tax and succession consequences, so take advice on the specific structure before you choose.

Nomination is not succession

A nomination in a society register, a bank account or a mutual fund tells the institution who to deal with. It does not decide who owns the property, and it does not override succession law or a will. People routinely believe a nomination settles everything, and their heirs spend a decade finding out otherwise.

The will

A registered will is the cheapest insurance in this entire book. It costs a few thousand rupees, it can be revoked or changed at any time, and it removes the single most common cause of a broken title chain: an owner who dies without one, leaving several heirs, one of whom eventually sells 'his share' and starts a lawsuit. If you own land, make a will. If your parents own land you may one day sell, ask, gently, whether they have one.

PART 7

Worksheets

Eight sheets. Print them, or copy them into a notebook, and fill them in by hand as you go. A deal that survives these eight pages is a deal worth doing. Keep the filled sheets in the title file afterwards; they are your record of what you checked and when.

W1. The 30-point pre-payment checklist

Do not release any payment beyond a refundable token until every line is ticked or explicitly marked 'not applicable, because'. The third column tells you where the answer comes from.

#	Check	Source	Done
1	Seller is the recorded owner today	State land record portal	
2	All co-owners identified and willing to sign	Record of Rights	
3	Succession documents obtained for any deceased owner	Probate / heir certificate / family settlement	
4	Survey number and sub-division match across record, deed and ground	Record, deed, site visit	
5	Area matches, in one converted unit	Record and deed	
6	Boundaries match the four adjoining owners or roads	Deed and site visit	
7	Land classification understood and legally purchasable by you	Record; local lawyer	
8	ULPIN noted, where assigned	Record or map	
9	Encumbrance certificate obtained for a long enough period	Registration department	
10	Every mortgage entry in the EC has a matching release	EC	
11	CERSAI asset search clean, or charges satisfied	CERSAI portal	
12	CERSAI borrower search on the seller clean	CERSAI portal	
13	Title chain assembled for at least 30 years, indexed	Seller's documents	
14	Each link registered, stamped and described consistently	Deeds and EC	
15	No pending suit, attachment or revenue case	e-Courts, district court, NCLT	
16	No acquisition, reservation or road-widening line on the parcel	Master plan and acquisition records	
17	Layout sanction exists and contains this plot number	Planning authority	

#	Check	Source	Done
18	Roads and open spaces on the ground match the sanction	Site visit and sanctioned plan	
19	Legal approach road, owned or granted in writing	Deed, layout, panchayat record	
20	Conversion order obtained if the land is agricultural	Revenue department	
21	RERA registration number obtained, if a plotted project	State RERA portal	
22	Section 4(2)(l) title affidavit seen, if a plotted project	Promoter	
23	Property tax, electricity and water dues clear	Municipality, utility	
24	Seller's identity verified in person, Aadhaar and PAN matched	Meeting	
25	Seller's bank account matches his name and PAN	Cancelled cheque / passbook	
26	Power of attorney, if any, registered, current and verified with the principal	Deed and video call	
27	Agreement to sell drafted with all eighteen clauses	Lawyer	
28	Public notice of intended sale published and objection period expired	Newspaper	
29	Stamp duty and registration fee computed on the correct value	State portal	
30	TDS position settled, PAN verified, deposit method fixed	Income-tax portal	

W2. Document request letter to the seller

Send this by e-mail and by WhatsApp, and keep the reply. A seller who will not put documents in writing is telling you something. Fill in the blanks, delete what does not apply, and add anything specific to your state.

Subject: Documents required before we proceed with the purchase of [survey / plot no.], [village / layout], [district]

Dear [Seller's name],

Thank you for showing me the property on [date]. Before we discuss price and payment, I would like to complete a standard title check. Please provide copies of the following, and let me know a date by which the originals can be shown to my lawyer:

1. The current Record of Rights / 7-12 / RTC / Patta / Khatauni for the parcel, issued within the last 30 days.
2. The registered sale deed in your name, with the index number and the sub-registrar's office.
3. Every earlier deed in the chain of title, from at least [year], in order, including partitions, gifts, releases and family settlements.
4. The encumbrance certificate for the parcel for the last 30 years.
5. If the parcel was ever mortgaged: the loan sanction letter, the latest statement, and the release or no-objection letter from the lender.
6. If any earlier owner died: the death certificate, the will if any, probate or letters of administration, or the legal heir certificate and the registered family settlement.
7. If you are selling under a power of attorney: the registered power of attorney, the principal's identity documents, and the principal's written confirmation that the power is in force.
8. If the seller is a company, trust or society: the certificate of incorporation or registration, the board resolution authorising the sale, and the identity of the signatory.
9. The layout sanction or approval, the sanctioned plan, and the release order, if the plot is in a formed layout.
10. The RERA registration number and the section 4(2)(l) affidavit, if the plot is part of a registered project.
11. The conversion order or change of land use order, if the land was agricultural.
12. The latest property tax receipt, electricity bill and water bill for the property.
13. A sketch or map showing the parcel with the four boundaries and the approach road.
14. Your PAN and Aadhaar (masked copies are acceptable at this stage; originals will be verified in person).

I would also like to visit the sub-registrar's office with you to verify the registered documents, and to publish a public notice inviting objections before we sign. Both are standard and I will bear the cost.

Once these are received and my lawyer has reviewed them, I will confirm the payment schedule in writing. Until then, please treat this as a request for information and not as a commitment to purchase.

Thank you,
[Your name, address, mobile, e-mail]

W3. Title chain worksheet

One row per transfer, oldest at the top. Copy the details from the deed, then tick the same details off against the encumbrance certificate. If a row cannot be filled from a registered document, that row is a break.

Link	Document and year	Seller in that deed	Buyer in that deed	Registered at / doc no.	Area and survey no.	Matches EC?
Origin						
2						
3						
4						
5						
Present						

Then answer these five questions on the same sheet, in one line each: Is there any gap in the dates? Is any transferor missing from the previous deed? Is any document unregistered? Is any area inconsistent? Is any

mortgage unreleased?

W4. Encumbrance certificate reading sheet

Field	What the certificate says	What it should say
Search period		Longer than the oldest link you rely on
Office searched		The office with jurisdiction over the parcel
Parcel searched		The exact survey number and sub-division
Number of entries		Every entry explained
Sales found		A continuous chain, ending with your seller
Mortgages found		Each one with a later release
Releases found		Each one matching a mortgage, by amount and asset
Partitions / gifts / settlements		Registered, and consistent with the record
Court attachments		None, or a documented discharge
Entries in unfamiliar names		Explained, in writing
Consideration anomalies		Explained (family settlement, release)

Then write one line at the bottom: 'CERSAI searched on [date] by asset and by borrower; result [clean / charge found, satisfied / charge found, open]'. If the answer is 'open', stop.

W5. Cost calculator

Fill the left column from your state's registration portal on the day you fill it. Do not use a number from a blog, a broker or this book; rates move.

Line	Rate or rule	Amount (Rs)
Agreed price		
Government guidance / circle rate value		
Chargeable value (higher of the two)		
Stamp duty	% =	
Transfer duty / cess / surcharge	% =	
Registration fee	% or cap =	
Sub-total: government charges		
TDS at 1% if value is Rs 50 lakh or more	% =	
Brokerage	% =	
Lawyer's fee		

Line	Rate or rule	Amount (Rs)
Survey / measurement		
Conversion charges, if any		
Development charges to the layout		
Arrears taken over (tax, electricity, water)		
Contingency at 5%		
TOTAL OUTFLOW		

Now compare the total with the price you negotiated. Most buyers are surprised by the last three lines, and by how much the chargeable value exceeds the price.

W6. Site visit checklist

Take this sheet to the plot, and take photographs with the date and location visible. Walk the boundary, do not stand at the gate.

- The four boundaries exist on the ground, and match the deed's description. Name the adjoining owners or roads as they actually are today.
- The area looks like the area in the deed. Pace it out or use a measurement app; a plot that is visibly smaller than the record is a problem.
- There is a legal approach road, of the width shown in the layout, and it reaches the plot without crossing private land.
- Nobody is in occupation. If somebody is, find out who, on what basis, and for how long.
- There is no structure, shed, borewell, temple, grave or fence that suggests long possession by someone else.
- The survey stones or boundary markers are present, or a survey can be arranged.
- There is no encroachment from the neighbours, and no evidence of a dispute: no boards, no paint marks, no notices.
- Drainage, electricity poles and water lines are where the layout says they are, and the connection is feasible.
- The plot is not inside a road-widening line, a drain buffer, a green belt or a reserved area visible on the ground.
- The land is not low-lying, waterlogged, or a filled quarry, without a professional assessment. This is a value question, not a title question, and it matters.
- Neighbours will talk. Ask two of them who owns the plot, how long it has been for sale, and whether anyone has ever claimed it. Do this without the broker present.
- The location on the map, the location on the ground, and the survey number in the record are the same place. Confirm this with a GPS pin saved to your phone.

W7. Ten questions for your lawyer

A good consultation is specific. Take the documents, take this list, and write down the answers. If the lawyer answers 'it should be fine', ask what document makes it fine.

1. On the documents I have given you, is the chain complete for the period you would consider adequate, and if not, exactly which document is missing?

2. Who is the legal owner today, and on what basis do you say so?
3. Is there any person alive who has a claim on this property that would not appear in the records I have brought?
4. Is the land classification such that I can lawfully hold it, and if not, what has to happen first and who applies?
5. Is the layout sanction valid today, and does it cover this plot?
6. Is there anything in the master plan, an acquisition notification or a reservation that affects this parcel?
7. Does the agreement to sell I have drafted protect me if the seller refuses to register, and what would you change?
8. What is the exact stamp duty, registration fee and cess for this transaction, computed on the chargeable value?
9. What is my TDS obligation, on what base, by when, and what happens if the seller's PAN is not linked to Aadhaar?
10. If this turns out to be a fraud, what would you file, where, within what time limit, and what would you need from me on day one?

W8. The seller conversation script

Say these out loud, in this order, in the first meeting. Watch what happens to the seller's face. The words are deliberately ordinary; the sequence is the test.

'Before we talk about price, can you show me the latest Record of Rights for this survey number, on your phone, right now?'

'Whose name is on it, and is that you? May I see your Aadhaar and PAN so I can match the name?'

'When did you buy this, from whom, and at what price? Do you have that deed with you?'

'Is there a loan or a mortgage on this land, from any bank or any person? If there was one earlier, do you have the release letter?'

'Who else has a share in this land: brothers, sisters, your wife, your children? Will they all sign, or is there a partition deed?'

'Has anyone in the family died whose name is still on the record? Do you have the succession papers?'

'Is there any court case, police complaint, notice or tax arrears connected to this land?'

'Has this land ever been sold or promised to anyone else, even by an agreement, even if the money was returned?'

'Is this land agricultural in the record, and has it been converted? Can I see the conversion order?'

'Which bank account will the sale money go to, and is it in your own name?'

'I will publish a public notice inviting objections, and I will pay the balance in the sub-registrar's office against the registered deed. Is that acceptable to you?'

Then stop talking, and let him answer. The pause is the interview.

APPENDIX

Portals, glossary, sources

A. Where to look, state by state

Portal names change and states reorganise departments. If a link has moved, search for the department rather than the URL. In every case the record you want is published by the Revenue Department, and the registration records by the Inspector General of Registration or the Stamps and Registration Department.

What you need	Where it lives
Record of Rights, maps and mutation status	Your state's land records portal (Bhulekh, Bhoomi, Mahabhulekh, MeeBhoomi, Bhu Bharati, AnyROR, Banglar Bhumi, ReLIS, Jamabandi, and their equivalents)
Encumbrance certificate and registered deeds	Your state's registration portal, run by the Inspector General of Registration or the Stamps and Registration Department
Guidance value, circle rate, ready reckoner	The same registration portal, usually as a separate search or calculator
Stamp duty and registration fee	The registration department's ready reckoner or fee schedule page
Security interests held by lenders	CERSAI public search
Real estate project registration	Your state's RERA portal, plus the central RERA portal for links
Court cases	e-Courts services for district and subordinate courts; the High Court website for appellate matters; NCLT for companies in insolvency
Master plan, zoning, layout sanctions	The planning authority: development authority, metropolitan authority, UDDA, DTCP, municipal corporation or panchayat
Land acquisition notifications	The State gazette, the revenue department and the acquiring authority
Property tax	The municipal corporation or panchayat assessment records
TDS on property	The income-tax e-filing portal, using your own PAN login
NRI and FEMA rules on property	The Reserve Bank's FEMA FAQs and the Non-Debt Instrument Rules, 2019

B. Glossary

Sixty terms you will meet in the file. Where a state uses a different word for the same thing, both are given.

Agreement to sell	A contract to sell later. Creates a right to compel a sale, not ownership.	**Land Stack**	The GIS framework under DILRMP 3.0 linking maps, records and registrations.
Akshaya / e-Khata	Digital property record used in parts of Karnataka.	**Layout sanction**	The planning authority's approval of a plotted layout.
Bhu-Aadhaar (ULPIN)	14-digit identifier for a land parcel, generated from its coordinates.	**Legal heir certificate**	A certificate identifying the heirs of a deceased person, issued by revenue authorities.

Bhu Bharati	Telangana's land records portal and Record of Rights Act of 2025, replacing Dharani.	**Lis pendens**	A doctrine that a buyer during a pending suit takes subject to its result.
Bhu-Naksha	Digitised cadastral map showing a parcel's boundaries and shape.	**Long-stop date**	The final date by which completion must happen under an agreement.
Cadastral map	The revenue map showing parcel boundaries and survey numbers.	**Mutation**	Updating the revenue record after a sale, inheritance or court order.
CERSAI	Central registry of security interests filed by lenders, including equitable mortgages.	**NA conversion**	Conversion of agricultural land to non-agricultural use.
Chargeable value	The value on which stamp duty is computed: usually the higher of the price and the guidance value.	**NAKSHA**	Urban land mapping programme issuing urban property cards.
Chitta / Adangal	Tamil Nadu revenue records showing land classification and cultivation.	**NOC**	No objection certificate, from a lender, society, co-owner or authority.
Circle rate	The state's notified minimum value for a locality, used as a stamp duty floor.	**Occupancy / occupant**	The class of holder in a revenue record; the person holding the land.
CLU	Change of land use, the conversion of agricultural land to another use.	**Pahani**	Karnataka's Record of Rights, also called RTC.
Conversion order	The revenue department's order permitting non-agricultural use.	**Patta**	Tamil Nadu's record of landholding issued to the owner.
Co-owner	A person holding a share in the property with others.	**Possession**	Physical control of the land, which can differ from ownership.
Dharani	Telangana's earlier land records portal, replaced by Bhu Bharati in 2025.	**Power of attorney**	An authority to act for another; not an instrument of transfer.
DILRMP	Digital India Land Records Modernisation Programme; phase 3 approved for 2026-2031.	**Probate**	Court certification of a will's validity.
Document number	The registration number given to a deed by the sub-registrar's office.	**Promoter**	The developer of a real estate project, as defined in RERA.
DTCP	Directorate of Town and Country Planning, a common layout sanctioning authority.	**Property card**	The urban land record in Maharashtra's city survey areas.
Easement	A right to use another's land, such as a right of way.	**RERA**	Real Estate (Regulation and Development) Act, 2016, and the authorities it created.
Encumbrance	Any charge, mortgage, lien, attachment or restriction on the property.	**Registration**	Recording a deed with the sub-registrar, which is what conveys title in a sale.
Encumbrance certificate	The registration department's list of registered transactions on a parcel for a period.	**Release deed**	A document by which a co-owner gives up his share in favour of another.
Equitable mortgage	A mortgage created by depositing title deeds with a lender, often unregistered.	**Reserve price**	The minimum bid in a bank auction.
Escrow	A separate bank account in which project collections must be held; 70% under RERA.	**RTC**	Record of Rights, Tenancy and Crops, Karnataka's land record.
Fard	A copy of a revenue record, in parts of north India.	**Satbara / 7-12**	Maharashtra's land record extract, showing holders and encumbrances.
FMB sketch	Field Measurement Book sketch, the parcel map used in Tamil Nadu.	**Specific performance**	A court order compelling a party to complete a contract, such as a sale.
GPA	General power of attorney; an agency, not a transfer of title.	**Stamp duty**	The state tax on a transfer document, paid before or at registration.

Guidance value	Karnataka's term for the notified minimum value of property.	**Succession certificate**	A court certificate for debts and securities of a deceased person.
Jamabandi	The record of rights in Punjab and Haryana.	**Survey number**	The number identifying a parcel in the revenue survey, often with a sub-division.
Jantri	Gujarat's notified minimum value.	**TDS**	Tax deducted at source; 1% on property purchases of Rs 50 lakh or more.
Khasra	The plot number in the village revenue map.	**Tenant / tenant-in-common**	A holder of an undivided share, as distinct from a joint tenant with survivorship.
Khata / Khatauni	The account number and the record of holdings in north Indian revenue records.	**Title chain**	The sequence of registered documents by which ownership reached the seller.
Kaveri	Karnataka's online registration and encumbrance services platform.	**ULPIN**	See Bhu-Aadhaar.

C. Sources

Every factual claim in this edition was checked against one of the following, in November 2026. Where a figure is state-specific and could not be confirmed from a government source, the book says so rather than quoting a number.

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- Reported 2026 cases used in chapter 2: press reports from Barabanki (July 2026), Pune (July 2026), Navi Mumbai (July 2026), Hyderabad (October 2026), Zirakpur (October 2026) and Ahmedabad (November 2026).
- Press reporting in August and September 2026 on the extent of ULPIN assignment and georeferencing, and on the limits of digitisation.

One last thing

The best deal you will ever do is the one you walked away from. Every person who lost money in the cases in this book had a moment when something felt slightly wrong and they explained it away. Keep this book open at the stop list, and trust the pause.